

**TENTATIVE RULINGS
DEPARTMENT C11 - LAW AND MOTION CALENDAR**

Judge Jonathan Fish

May 18, 2026

LAW AND MOTION IS HEARD ON MONDAYS AT 1:30 P.M.

Court Reporters: Official court reporters (i.e., court reporters employed by the Court) are **NOT** typically provided for law and motion matters in this Department. If a party desires a record of a law and motion proceeding, it must provide a court reporter. Parties must comply with the Court's policy on the use of privately-retained court reporters, which can be found at:

- [Civil Court Reporter Pooling](#);
- Please see the Court's website at [Court Reporter Interpreter Services](#) for additional information regarding the availability of court reporters.

Tentative Rulings: The Court endeavors to post tentative rulings on the Court's website by 5 p.m. on the preceding Friday. Do NOT call the Department for a tentative ruling if none is posted. Tentative rulings may not be posted on every case – or may be posted the morning of the hearing – due to the Court's other commitments or the nature of a particular motion. **The Court will NOT entertain a request for continuance or the filing of further documents once a tentative ruling has been posted.**

Submitting on tentative rulings: If **all** counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5211. Please do not call the Department unless **all** parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the Court's signature, if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If no one appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

Appearances: Remote and In-Person Proceedings. Parties are referred to the Court's "Appearance Procedures and Information – Civil Unlimited and Complex" and "Guidelines for Remote Appearances" available on the Public Website.

#	Case Name	
1	Annevelink vs. Watson 2025-01496571	Motion to Appoint Receiver Continued to 06/22/2026
2	Bent vs. Miller 2025-01516335	Motion to Set Aside/Vacate Default Defendant Kyle Miller’s Motion to Set Aside Entry of Default and Granting Defendant Leave to Defendant Leave to Defend and File Responsive Pleading is granted. The Court finds Defendant should be granted discretionary relief under CCP section 473(b). The statute provides, in relevant part, that: “The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect.” (Code Civ. Proc., § 473, subd. (b).) If a party moves promptly for relief from default, or if the granting of the relief from default will not prejudice the opposing party (other than losing the advantage of the default), “very slight evidence is required to justify a trial court’s order setting aside a default.” (<i>Iott v. Franklin</i> (1988) 206 Cal.App.3d 521, 526, citing <i>Shamblin v. Brattain</i> (1988) 44 Cal.3d 474, 478.) The statute is to be “liberally construed” as “sound policy favors the determination of actions on their merits.” Any doubts “must be resolved in favor of the party seeking relief from default.” (<i>Shapell Socal Rental Properties, LLC v. Chico's FAS, Inc.</i> (2022) 85 Cal.App.5th 198, 212.) A motion for discretionary relief under section 473(b) must satisfy three requirements. First, the motion must be made “within a reasonable time” and “in no case exceeding six months” after the entry of default (unless relief is sought on equitable grounds). (Code of Civ. Proc. § 473, subd. (b).) Second, the motion “shall be accompanied” by a copy of the answer or other proposed pleading to be filed, “otherwise the application shall not be granted.” (Code of Civ. Proc. § 473, subd. (b).) Lastly, the motion must show that default was taken as a result of mistake, inadvertence, surprise, or excusable neglect. The Court finds all three requirements have been satisfied, here. The motion was timely made within less than a month from entry of

		default and is accompanied by a copy of the proposed answer. The motion is supported by a declaration from Defendant explaining that default was entered as a result of his lack of understanding that he was properly served with process. The Default entered against Defendant Miller (ROA 15) is, hereby, vacated. Defendant shall file and serve its answer by <u>5/28/26</u>. To the extent Defendant seeks leave to file a special motion to strike, the motion shall be due by <u>06/01/26</u>. (Code Civ. Proc., § 425.16, subd. (f).) Defendant shall give notice of the ruling. Case Management Conference – Continued to 6-15-26 at 9:00 a.m.
3	Bowie vs. NuEyes Technologies, Inc. 2025-01501793	Motion to Strike Answer Continued to 07/13/2026
4	Broerman vs. General Motors, LLC 2024-01407671	1. Motion for Attorney Fees 2. Motion to Strike or Tax Costs 3. Order to Show Cause re: Dismissal on Settled Case Continued to 07/20/2026
5	California Solar Innovators, Inc. vs. Green Solar 2022-121, LLC 2025-01500843	Off Calendar
6	Coffman vs. Antonio 2025-0140510	Motion to Appoint Appraiser to Determine Fair Market Value The motion of plaintiff Rosario A. Coffman, individually and as trustee of the Coffman Revocable Trust dated February 16, 2017, for an order appointing a licensed, disinterested real estate appraiser to determine the fair market value of the property at 239 S. Camellia Street, Anaheim, is DENIED without prejudice for plaintiff to refile at an appropriate later time in the litigation.

As with the motion for an order determining the manner of partition set for hearing concurrently with this motion, the Court must determine the interests of the parties to the property and the equities before it can find that the provisions of the Partition of Real Property Act apply to this action and that the appointment of an appraiser is necessary. Therefore, like the motion for an order determining the manner of partition, this motion must be denied without prejudice.

Motion to Determine Manner of Partition

The motion of plaintiff Rosario A. Coffman, individually and as trustee of the Coffman Revocable Trust dated February 16, 2017, for an order determining the manner of partition is DENIED without prejudice for plaintiff to refile at an appropriate later time in the litigation.

Plaintiff Rosario A. Coffman, individually and as trustee of the Coffman Revocable Trust dated February 16, 2017, moves the Court to determine the manner of partition, i.e., in kind or by sale, as it relates to the property at 239 S. Camellia Street, Anaheim, which is the subject of this action. Defendant and cross-complainant Mario Angelo Antonio oppose the motion, contending that it is premature at this point in the litigation.

Partition is the procedure for segregating and terminating common interests in the same parcel of property. 14859 Moorpark Homeowner's Assn. v. VTR Corp. (1998) Cal.App.4th 63 Cal.App.4th 1396, 1404-1405. The term "partition" may refer to a judicial decree or a voluntary agreement of the parties. Id. at p. 1405.

The process does not involve a transfer of title; the parties already have the title, and their common title is merely being divided. Rancho Santa Margarita v. Vail (1938) 11 Cal.2d 501, 539. A partition segregates and terminates the common interests in a parcel of property, but it does not create or convey new or additional interests. The only result is that the common interests become interests in severalty. Ibid. Ordinarily, in absence of a waiver or estoppel, or other equitable defenses, each cotenant has an "absolute" right to partition the common property. Miller & Starr, Cal. Real Estate 4th ed. 2025), § 11:14.

The parties may enter into a voluntary agreement to partition property, but, as with any contract, the agreement must be clear, specific, and reasonable. See Miller & Starr, Cal. Real Estate 4th ed. 2025), § 11:14. For example, the parties can make a written buy-sell agreement for a partition by appraisal whereby either party can acquire the property of the other cotenant at the appraised value.

Where real property is held by tenants in common who have no mutually binding agreement concerning partition, any cotenant may bring the action, but after January 1, 2023, the action is governed by a separate statutory procedure under the Partition of Real Property Act. Code Civ. Proc. § 874.311. All other partition actions involving real property, including those among tenants in common who have a binding agreement for partition, are governed by the general partition law, which also applies to some actions involving personal property. Code Civ. Proc. § 872.020.

In bringing this motion as well as the concurrently noticed motion for appointment of appraiser, plaintiff contends that the Partition of Real Property Act applies to this action and urges the Court to follow the procedures there. Indeed, in her complaint, she alleges that she and defendant hold ownership interests in the property as tenants and common, each with a 50% interest in the property. (See Complaint, ROA 2, at ¶¶ 18-21.)

Defendant countered the complaint by filing a cross-complaint against plaintiff and another cross-defendant. (ROA 11.) In that cross-complaint, defendant alleges that, after the death of plaintiff's husband, plaintiff quitclaimed 50% of the interest in the property to him in consideration of the help and assistance he gave her husband before his death. (Cross-complaint, ¶ 10.) He further alleges that plaintiff subsequently asked him to help her operate the family business on the premises and promised to leave him her 50% interest in the property if he did so and that she would leave her other children her other assets. (Cross-complaint, ¶¶ 11 and 12.) Defendant alleges that he accepted plaintiff's offer and quit his job in reliance thereon. (Cross-complaint, ¶ 13.) He then alleges that, in spite of their agreement, plaintiff formed a trust and funded it with her 50% interest in the property, although she later promised to take the property out of the trust and convey it to him. (Cross-complaint, ¶¶ 17, 18, 19, and 20.)

The allegations in the cross-complaint suggest that the parties had an agreement for partition of the property or, the very least, that defendant has some equitable defenses to plaintiff's right of partition. Thus, the Court must determine the interests of the parties to the

		property before it determines whether interests of the parties must be determined before the Court determines whether the provisions of the Partition of Real Property Act apply to this action. As such, the motion must be denied (without prejudice for plaintiff to refile at an appropriate later time in the litigation). Plaintiff to give notice.
7	Phillips vs. Newport-Mesa School District 2025-01474929	Motions to Compel Production and Response to Requests for Admissions Plaintiff Trenae Phillips’ motion for order compelling defendant Newport-Mesa School District to provide further responses to requests for production, set one (“RFPs”) is granted in part and denied in part, as set forth below. Plaintiff’s motion to compel defendant Corey Stone to provide further responses to requests for admission, set one (“RFAs”) is granted. Plaintiff is awarded sanctions of \$960 against Defendant Stone. Facts This is an action for injuries resulting from a car accident. Plaintiff alleges that Defendant Corey Stone, while in the course and scope of his employment with Defendant Newport-Mesa School District (“NMSD”) , caused the accident by driving too fast and making an unsafe lane change. [Complaint (ROA #2), ¶¶ MV-2f, GN-1.] On 5/13/25, Plaintiff served the RFPs on NMSD and the RFAs on Stone; Defendants each served responses by email on 7/7/25. [Nunez Decls. (ROA ## 43, 42), ¶¶ 3, 4 and Exs. A and B.] Counsel for the parties communicated back and forth numerous times as part of their meet and confer efforts. [<i>Id.</i>, ¶¶ 5-15 and Exs. C-M.] This included a number of extensions of Plaintiff’s deadline for filing motions to compel from what would have been an 8/25/25 deadline. [<i>See Id.</i>, Exs. D, G, H, L.] Twice these were in terms of a “two week” extension. [<i>Id.</i>, Exs. D, G.] Once it was a date certain [Ex. H]; and the last extension as until two weeks after the promised supplemental responses were served. [<i>Id.</i>, Exs. L and M.] Supplemental responses were not served for the RFPs and RFAs, however, and Plaintiff now moves to compel further responses. [<i>Id.</i>, ¶¶ 15-17.] The motions were filed on 12/19/25. Timeliness of the Motions

For both RFPs and RFAs, the Discovery Act provides that the propounding party may bring a motion to compel further responses within 45 days of service of the response – extended two court days for service by email. Code Civ. Proc. §§ 2031.310(c), 2033.290(c), 2016.050, 1013, 1010.6(a)(3)(B).

These deadlines may be extended to a “specific later date to which the demanding party and the responding party have agreed in writing.” Code Civ. Proc. §§ 2031.310(c), 2033.290(c).

Defendants argue that Plaintiff’s motions are untimely because they were not filed by 9/29/25 – the last “certain” date agreed to by the parties. [Nunez Decl., Ex. H.] They also appear to argue that the last extension of two weeks after the promised supplemental responses were to be served should be interpreted as simply a two week extension, making the deadline 10/13/25 at best.

But the last extension clearly was not simply for two weeks. It was for two weeks after Defendants served the supplemental responses that they counsel assured Plaintiff’s counsel they were going to serve.

Defendants’ contention that this form of extension does not comply with the terms of sections 2031.210(c) and 2022.290(c) is sound, but their conclusion that they get to take advantage of that is not. Defendants agreed to that form of extension and lulled Plaintiff’s into reliance on that by their promise to serve supplemental responses – which Defendants ultimately did not do.

Under the doctrine of equitable estoppel, assurances of cooperation and delaying conduct may estop a party from relying on a discovery motion cutoff date. [*Sears, Roebuck & Co. v. National Union Fire Ins. Co. of Pittsburg* \(2005\) 131 Cal. App. 4th 1342, 1351.](#) With regard to estoppel, “[t]he abuse of discretion standard applies ..., and, under the substantial evidence rules, [a reviewing court must] resolve all evidentiary conflicts in [the prevailing party’s] favor.” (*Ibid.*) See also *Pelton-Shepard industries, Inc. v. Delta Packaging Products, Inc.* (2008) 165 Cal. App. 4th 1568, 1585 (recognizing applicability of equitable estoppel to discovery motion deadlines but finding inapplicable because party’s assurances and delaying conduct not ultimately the reason motion was too late).

Defendants are equitably estopped from asserting that the motion to compel deadline extension that they agreed to is insufficient so as to enable them to rely on the prior deadline.

Motion to Compel Further Responses to RFPs

Code Civ. Proc. section 2031.310 provides, in relevant part, that “any party may obtain discovery” by “inspecting, copying, testing, or sampling documents, tangible things, land or other property, and electronically stored information in the possession, custody, or control of any other party to the action.” Code Civ. Proc., § 2031.010(a). Section 2031.220 requires a party responding to an inspection demand to respond with (1) a statement that it will comply, (2) a representation that it does not have the ability to comply, or (3) an objection.

If the party responds with a statement of compliance, it must specify whether production “will be allowed either in whole or in part, and that all documents or things in the demanded category that are in the possession, custody, or control of that party and to which no objection is being made will be included in the production.” Code Civ. Proc., § 2031.220.

If the party responds with a representation that it does not have the ability to comply, it “shall affirm that a diligent search and a reasonable inquiry has been made in an effort to comply with that demand.” Additionally, it “shall also specify whether the inability to comply is because the particular item or category has never existed, has been destroyed, has been lost, misplaced, or stolen, or has never been, or is no longer, in the possession, custody, or control of the responding party. The statement shall set forth the name and address of any natural person or organization known or believed by that party to have possession, custody, or control of that item or category of item.” Code Civ. Proc., § 2031.230.

Finally,

(a) If only part of an item or category of item in a demand for inspection, copying, testing, or sampling is objectionable, the response shall contain a statement of compliance, or a representation of inability to comply with respect to the remainder of that item or category.

(b) If the responding party objects to the demand for inspection, copying, testing, or sampling of an item or category of item, the response shall do both of the following:

(1) Identify with particularity any document, tangible thing, land, or electronically stored information falling within any category of item in the demand to which an objection is being made.

(2) Set forth clearly the extent of, and the specific ground for, the objection. If an objection is based on a claim of privilege, the particular privilege invoked shall be stated. If an objection is based on a claim that the information sought is protected work product under

Chapter 4 (commencing with Section 2018.010), that claim shall be expressly asserted.

(c)(1) If an objection is based on a claim of privilege or a claim that the information sought is protected work product, the response shall provide sufficient factual information for other parties to evaluate the merits of that claim, including, if necessary, a privilege log.

Code Civ. Proc. § 2031.240.

On receipt of the response, the demanding party may move to compel a further response if any of the following apply: (1) a statement of compliance is incomplete; (2) a representation of inability to comply is inadequate, incomplete or evasive; (3) an objection is without merit or too general. Code Civ. Proc., § 2031.310(a).

Where there has been a response to RFPs that the propounding party finds inadequate, then the Code provides for a motion and order compelling production upon a showing of good cause, prior meeting and conferring, and the filing of a separate statement. Code Civ. Proc. § 2031.310(b)(1) and (2); CRC 3.1345; Cal. Prac. Guide, Civil Procedure before Trial §8:1494.1.

Plaintiff filed a separate statement with her motion. [ROA #39.] Plaintiff has also shown prior meet and confer attempts. Finally, Plaintiff also shows good cause both generally and – unless and to the extent noted below – for each RFP in issue. [See Nunez Decl., ¶ 17 and Separate Statement.]

Nos. 1-7, 9, 14, 15, 26, 27, 29

In response to these RFPs, Defendant NMSD asserted objections but offered production. It is unclear whether documents are being withhold on the basis of any of the objections are privileged asserted. In short, the responses do not comply with Code of Civil Procedure section 2031.220 and, probably, section 2031.240.

The motion to compel further responses is granted as to these RFPs insofar as compliance with sections 2031.220 and 2031.240.

Nos. 16-19, 28

For these RFPs, after asserting objections Defendant NMSD states that it is not in possession of responsive documents. Such response is not complete, however, as it does not “specify whether the inability to comply is because the particular item or category has never existed, has been destroyed, has been lost, misplaced, or stolen, or has never been, or is no longer, in the possession, custody, or control of the responding party.” Code Civ. Proc. §2031.230.

The motion to compel further responses is granted as to these RFPs insofar as compliance with section 2031.230.

Nos. 10, 12-13, 20, 32, 34, 38, 39-42, 46, 47

In response to these RFPs, Defendant NMSD asserted only objections.

RFP nos. 10, 12, 13, 20, 32, 41, and 42 seek documents protected by an individual's rights to privacy – whether medical records, employment records, certain cell phone records, or driving records. *County of Los Angeles v. Superior Court* (2015) 242 Cal.App.4th 475, 486–487; *Saunders v. Superior Court* (2017) 12 Cal.App.5th Supp. 1.

This requires a higher showing of relevance than Plaintiff had made.

The party seeking discovery after a valid privacy objection has been made must show a particularized need for the information sought. The court must be convinced that the information is directly relevant to a cause of action or defense ... i.e., that it is essential to determining the truth of the matters in dispute. *Britt, supra*, 20 Cal.3d at 859–862; *Harris v. Superior Court* (1992) 3 Cal.4th 661, 665; Rutter, Cal. Prac. Guide Civ. Pro. Before Trial Ch. 8C-5 at 8:320. The court must carefully balance the requesting party's need for the information with opposing party's right of privacy when determining whether the discovery should be permitted. *John B. v. Superior Court* (2006) 38 Cal.4th 1177, 1199; *Harris, supra*, 3 Cal.App.4th at 665. Additionally, discovery will not be ordered if the information sought is available from other sources or through less intrusive means. *Allen v. Superior Court* (1984) 151 CA3d 447, 449; *Britt, supra*, 20 Cal.3d at 856 (discovery “cannot be pursued by means that broadly stifle fundamental personal liberties when the end can be more narrowly achieved”); Rutter, Cal. Prac. Guide Civ. Pro. Before Trial Ch. 8C-5 at 8:321.

While a party need not always show a “compelling need” for the discovery, “when a discovery request seeks information implicating the constitutional right of privacy, to order discovery simply upon a showing that the Code of Civil Procedure section 2017.010 test for relevance has been met is an abuse of discretion.” *Williams v. Superior Court* (2017) 3 Cal.5th 531, 556.

Such discovery must be “directly relevant” and it is not enough if the discovery might lead to admissible evidence. *Board of Trustees v. Superior Court* (1981) 119 Cal. App. 3d 516, 526 disapproved of on other grounds by *Williams v. Superior Court* (2017) 3 Cal.5th 531.

Then, the court balances whether the invasion of the privacy interest is justified by a competing interest. *Hill v. National Collegiate Athletic Ass'n* (1994) 7 Cal.4th 1, 38.

In the absence of the required showing by Plaintiff, the motion is denied as to RFPs nos. 10, 12, 13, 20, 32, 41, and 42.

For RFP nos. 34, 38, 39, 40, 46, and 47, Plaintiff requests all documents that “relate to” a given topic. Such a request is overbroad. Just about anything can relate to a given topic, depending on viewpoint. This is not just an overbreadth issue but can be a “vague and ambiguous” issue as well because it is hard to know where to draw the line on what “relates” to an issue. While the core of a request may be directed at relevant information, given these issues the motion is denied as to RFP nos. 34, 38, 39, 40, 46, and 47.

Motion to Compel Further Responses to RFAs

(a) Each answer in a response to requests for admission shall be as complete and straightforward as the information reasonably available to the responding party permits.

(b) Each answer shall:

(1) Admit so much of the matter involved in the request as is true, either as expressed in the request itself or as reasonably and clearly qualified by the responding party.

(2) Deny so much of the matter involved in the request as is untrue.

(3) Specify so much of the matter involved in the request as to the truth of which the responding party lacks sufficient information or knowledge.

Code Civ. Proc. § 2033.220.

After receiving responses to requests for admission that a party finds evasive or incomplete a party may move for further responses. Code Civ. Proc. §2033.290(a). The motion must be accompanied by a declaration showing a good faith attempt to meet and confer and a separate statement. Code Civ. Proc. §2033.290(b). Plaintiff has met these requirements.

Plaintiff seeks further responses to the following RFAs nos. 20-22.

		Defendant’s boilerplate objections to these three RFAs are without merit. The information sought is not a legal conclusion or an expert opinion. It is a fact: either Defendant has been in a car accident before (or found at fault for a car accident or gotten a ticket) or he has not. “Assumes facts not in evidence” is not an objection to discovery.. Nor is “unduly prejudicial,” the argument made in Defendant’s opposition. Defendant argues the information is not relevant because Plaintiff has not prayed for punitive damages or “asserted a negligent entrustment or hiring claim against the District that would make Stone’s prior driving record relevant.” But Plaintiff may use discovery to learn the facts necessary to allege a basis for punitive damages. “Codified as subdivision (b) of section 1101 (§ 1101(b)), the rule has long been that evidence of uncharged misconduct <i>is</i> admissible where relevant to prove “some fact (such as motive, opportunity, intent, preparation, plan, <i>knowledge</i>, identity, absence of mistake or accident ...) other than [a defendant's] disposition to commit such an act.” (§ 1101(b), <i>italics added.</i>)” <i>People v. Ortiz</i> (2003) 109 Cal.App.4th 104, 111. And Plaintiff <i>has</i> pleaded negligent entrustment, which would make Defendant’s driving record, and NMSD’s knowledge of it (or lack thereof) relevant. The motion to compel further responses to these RFAs is therefore granted. Plaintiff to give notice.
8	Pooph, Inc. vs. ONM Environmental, Inc. 2025-01511009	1. Motion for Order to Stay Proceedings 2. Case Management Conference Continued to 06/01/2026
9	Popal vs. Sajjadian 2024-01384261	Motion to Set Aside/Vacate Judgment The Court grants Plaintiff Shahla Popal’s Motion to vacate the 1/23/26 Judgment and 12/23/25 summary judgment Order on Plaintiff’s Complaint against Defendants Ali Sajjadian, M.D., and Sajjadian Medical Corporation.

The Court re-sets the hearing for summary judgment to take place on 8-3-26 at 1:30 p.m. The Court will consider the 12/16/25 corrected declaration of Andre Aboolian, M.D., F.A.C.S. No further filings are permitted by either side.

The Court also sets a trial setting conference for the same date and time.

Merits

A [CCP § 473\(b\)](#) consists of “a discretionary provision, which applies permissively, and a mandatory provision, which applies as of right.” ([Minick v. City of Petaluma \(2016\) 3 Cal.App.5th 15, 25-26](#); [Bailey v. Citibank, N.A. \(2021\) 66 Cal.App.5th 335, 348.](#))

Here, the Court finds sufficient facts have been shown to warrant the relief requested based on these circumstances analogous to a default. The Court granted summary judgment on the grounds that Defendants met their moving burden and Plaintiff did not present expert evidence to controvert Defendants’ expert testimony. (*Hanson v. Grode* (1999) 76 Cal.App.4th 601, 607 [*citing Munro v. Regents of University of California* (1989) 215 Cal.App.3d 977, 984-985].) The Court did not consider Plaintiff’s expert declaration at all.

A recent Court of Appeal case confirms that it is an abuse of discretion to refuse to consider an opposing declaration inadvertently filed without verification, when the defect has been cured prior to entry of the order. (*Walton v. Victor Valley Community College District* (2026) 119 Cal.App.5th 1164, “

A court should be cautious about granting summary judgment “based on a curable procedural default, which deprives the opposing party of a decision on the merits.” (Citation omitted.) In the event of such a defect, the “proper response” is to grant an opportunity to cure so the motion can be resolved on the merits. (Citation omitted).)

Here, at the hearing, the Court pointed out the defect and took the matter under submission. The next morning after the hearing Plaintiff filed the corrected declaration, but the Order on the Motion was entered without consideration of the corrected declaration.

Thus, Plaintiff should have been given an opportunity to cure such a defect so the matter may be resolved on the merits. The court, instead, relied on its duty to consider only admissible evidence. *Walton* makes clear that the Plaintiff had a right to “cure the defect”.

Defendants did not raise this objection themselves. The defect was identified sua sponte by the Court, at the hearing.

		Finally, the Court finds no prejudice to Defendants. The Motion is granted. Plaintiff to give notice.
10	Sunnyside Cremation and Funeral Inc. vs. California Mortuary Group, Inc. 2020-01169105	Motion for Summary Judgment and/or Adjudication The Court grants in part Defendants California Mortuary Group, Inc., and Yung M. Jung’s Motion for summary adjudication of Plaintiff Sunnyside Cremation and Funeral Inc.’s First Amended Complaint (FAC). Specifically, the Court grants summary adjudication as to the second cause of action for intentional interference with contracts, which are issues 4 and 5 (identified in the Notice of Motion as numbers 7 and 8). The remainder of the Motion is denied. <u>Late Opposition</u> Plaintiff filed its opposition with 18 days’ notice. All opposition papers must be served on the moving party and filed with the court at least 20 days before the date set for hearing on the motion, unless the court shortens the time for good cause shown. (CCP § 437c(b)(2) (amended eff. 1/1/25)) A court has discretion to refuse to consider papers served and filed beyond the deadline without a prior court order finding good cause for late submission. (<i>Bozzi v. Nordstrom, Inc.</i> (2010) 186 Cal.App.4th 755, 765,—court had discretion to refuse to consider “surrebuttal” brief and supplemental expert declaration filed on day of hearing without any explanation for late submission; <i>Mackey v. Board of Trustees of Calif. State Univ.</i> (2019) 31 Cal.App.5th 640, 657—“inadvertently” late filed declarations properly excluded where party did not seek order permitting late filing nor continuance of hearing.) Here, Plaintiff’s Counsel tells us that he mis-calendared the date for the filing of the opposition. (Buus Decl., ¶2.) A substantive reply was filed with no request for a continuance. Thus, the Court, in its discretion, considers the opposition. <u>Requests for Judicial Notice</u> Defendants’ request for judicial notice is granted. The court may take notice of official acts of any state, county or federal legislative, executive or judicial department. (Ev. Code § 452(c); <i>see Fowler v. Howell</i> (1996) 42 Cal.App.4th 1746, 1750—court can take judicial

notice of records and files of state administrative agencies; *Julian Volunteer Fire Co. Ass'n v. Julian-Cuyamaca Fire Protection Dist.* (2021) 62 Cal.App.5th 583, 600, Judicial notice of an official document includes “facts that can be deduced, and/or clearly derived from, its legal effect...”)

Judicial notice of other court records and files is limited to matters that are indisputably true. This generally means judicial notice is limited to the orders and judgments in the other court file, as distinguished from the contents of documents filed. (See e.g. *Fremont Indemnity Co. v. Fremont Gen. Corp.* (2007) 148 Cal.App.4th 97, 113.)

Plaintiffs’ request for judicial notice is denied.

As to the Minute Order, it is not necessary to ask to judicially notice an order in this case. “[Y]ou should simply call the court’s attention to such papers.” (Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2025) ¶ 9.53.1a.)

As to the Declarations, the Court incorporates them by reference instead. A party may file the same declaration in support of several motions by incorporating previously filed declarations by reference, provided the declarations are properly identified by date of execution and title. California Rules of Court, rule 3.1110(d) expressly permits reference to previously filed papers, and courts have consistently held that litigants are not required to refile documents absent a rule precluding incorporation by reference. (See e.g. *Roth v. Plikaytis* (2017) 15 Cal.App.5th 283.)

Evidentiary Objections

Plaintiff’s objection (unnumbered, but the Court numbered them) nos. 1-7 are overruled.

Defendants’ objections nos. 1-16 are overruled.

Legal Standard

“[F]rom commencement to conclusion, the party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law.” (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) “A prima facie showing is one that is sufficient to support the position of the party in question.” (*Id.* at p. 851.) A defendant moving for summary judgment satisfies his or her initial burden by showing that one or more elements of the cause of action cannot be established or that there is a complete defense to the cause of action. (Code Civ. Proc., § 437c, subd. (p)(2).) The scope of this

burden is determined by the allegations of the plaintiff's complaint. (*FPI Development v. Nakashima* (1991) 231 Cal.App.3d 367, 381-382 [pleadings serve as the outer measure of materiality in a summary judgment motion]; *580 Folsom Associates v. Prometheus Development Co.* (1990) 223 Cal.App.3d 1, 18-19 [defendant only required to defeat allegations reasonably contained in the complaint].)

A cause of action cannot be established if the undisputed facts presented by the defendant prove the contrary of the plaintiff's allegations as a matter of law. (*Brantley v. Pisaro* (1996) 42 Cal.App.4th 1591, 1597.) Alternatively, a moving defendant can show that a cause of action cannot be established by submitting evidence, such as discovery admissions and responses, that plaintiff does not have and cannot reasonably obtain evidence to establish an essential element of his cause of action. (*Aguilar v. Atlantic Richfield Co.*, *supra*, 25 Cal.4th at pp. 854-855; *Union Bank v. Superior Court* (1995) 31 Cal.App.4th 573, 590 [finding moving defendant may show plaintiff's lack of evidence by factually devoid discovery responses after plaintiff has had adequate opportunity for discovery]; see *Scheiding v. Dinwiddie Constr. Co.* (1999) 69 Cal.App.4th 64, 80-81 [finding *Union Bank* rule only applies where discovery requests are broad enough to elicit all such information].) Once a defendant meets its prima facie showing, the burden shifts to the plaintiff to show by reference to specific facts the existence of a triable issue as to that affirmative defense or cause of action. (*Aguilar v. Atlantic Richfield Co.*, *supra*, 25 Cal.4th at p. 850.)

The court shall grant a motion for summary adjudication "only if it completely disposes" of "a cause of action, an affirmative defense, a claim for damages, or an issue of duty." (Code Civ. Proc., § 437c, subd. (f)(1).) "A motion for summary adjudication may be made by itself or as an alternative to a motion for summary judgment and shall proceed in all procedural respects as a motion for summary judgment." (Code Civ. Proc., § 437c, subd. (f)(2).)

Merits

1. Defamation

The elements of a defamation claim are (1) a publication that is (2) false, (3) defamatory, (4) unprivileged, and (5) has a natural tendency to injure or causes special damage. "In general, ... a written communication that is false, that is not protected by any privilege, and

that exposes a person to contempt or ridicule or certain other reputational injuries, constitutes libel.” The defamatory statement must specifically refer to, or be “of [or] concerning, the plaintiff.” If the person defamed is a public figure, he cannot recover unless he proves, by clear and convincing evidence that the libelous statement was made with actual malice (i.e., with knowledge that it was false or with reckless disregard of whether it was false or not). (*Jackson v. Mayweather* (2017) 10 Cal.App.5th 1240, 1259.)

Here, Defendants show that California Mortuary Group received an unsolicited email containing the Attorney General's Accusation against Sunnyside and Charles An on November 5, 2020, and forwarded that public charging document to two industry contacts on the same day. (Separate Statement of Undisputed Fact (SSUF) 9-13.) The allegations in the Accusation are true as evidenced by the Stipulated Settlement and Disciplinary Order wherein Sunnyside and Charles An agreed that the California Department of Consumer Affairs Cemetery and Funeral Bureau could establish a factual basis for the charges in the Accusation. (SSUF 54.)

Moreover, Yung M. Jung and Anne Jung expressly deny making any defamatory statements about Sunnyside or Charles An and deny any interaction during the relevant time with the companies identified in the Amended Complaint. (SSUF 14-17.)

But Plaintiff has met its burden in opposition to show that there are triable issues of material fact as to what was said and to whom.

The FAC alleges that between approximately October 2020 and through the present day, Defendants directly contacted and stated to Sunnyside Associates in the mortuary industry that Plaintiff was being investigated by the State of California Cemetery and Funeral Bureau, that Plaintiff *was doing illegal activities, and that if these businesses and individuals who were contacted continued to do business with Plaintiff, they too would be investigated by the State of California, and that their businesses would be jeopardized.* (FAC, ¶17.)

Plaintiff provides third-party declarations in opposition that describe other statements that were made by Defendants.

Goldie S. Kim declared under penalty of perjury that John Jung of California Mortuary called her and came to her office in person, and stated the following:

“Sunnyside was conducting illegal preneed trust operations and that Sunnyside was going to be shut down by the State,”

“that Sunnyside was deceiving the public and that he would make sure Sunnyside would go out of business,” and “that my business would be harmed by continuing to do any business with Sunnyside.”

(G. Kim Decl.)

Reverend Jung Kim declared under penalty of perjury that John Jung of California Mortuary called him multiple times and came by his office in person, and stated the following:

“that Sunnyside was conducting illegal pre-need trust operations and that Sunnyside was going to be shut down by the State,” “that Sunnyside was deceiving the public and doing criminal activities, and that he would make sure Sunnyside would go out of business,” “that he is friends with the State investigator/auditor,” and “that my business would be harmed by continuing to do any business with Sunnyside.”

(R.J. Kim Decl.)

Defendants argue that these statements are opinion and not statements of fact.

The court decides whether a statement is actionable fact or nonactionable opinion. (*Baker v. Los Angeles Herald Examiner* (1986) 42 Cal.3d 254, 260.)

The statements that Plaintiff is engaging in criminal and illegal conduct and consequently will be shut down by the State are statements of fact, not unactionable statements of opinion. But is particularly true in light of the context in which the statements to Jung Kim were made: the factual assertions were combined with Yung Jung’s assertion that he is friends with state investigators, which reasonably can be understood to convey that Yung Jung had special “inside” knowledge of the investigation and the State’s planned action.

Further, the Bureau never informed either Sunnyside or An that Sunnyside was unable to do business with its vendors or referral sources, or that anybody doing business with Sunnyside would be negatively impacted. (An Decl., ¶ 3).

While Defendants dispute making these statements, the truth of what was said is properly left to the finder of fact.

On Reply, Defendants argue that even accepting the statements of Ms. Kim and Rev. Jung’s characterizations for this motion, they are, at most, disputed accounts of “competitive speech” in the context of a pending Bureau Accusation—a matter of public record—paired with nonactionable opinions, rhetoric, or predictive statements. False assertions of fact are not allowable as competitive statements.

Finally, Defendants argue on reply that Plaintiff has not identified any causal connection or damages stemming from any alleged statements made to Goldie Kim or Reverend Jung Kim.

This argument is made for the first time on reply. Further, there may be a recovery of nominal damages even though no actual injury or punitive damages are shown. (*See e.g. Triton Ins. Underwriters, Inc. v. Committee on Chiropractic Welfare* (1965) 232 Cal. App. 2d 829.) The Court finds triable issues of fact as to whether Defendants acted with malice in making the alleged statements about its competitor.

Thus, the Motion is denied as to the defamation cause of action.

2. Intentional Interference with Contact

“The elements which a plaintiff must plead to state the cause of action for intentional interference with contractual relations are (1) a valid contract between plaintiff and a third party; (2) defendant's knowledge of this contract; (3) defendant's intentional acts designed to induce a breach or disruption of the contractual relationship; (4) actual breach or disruption of the contractual relationship; and (5) resulting damage.” (*Pacific Gas & Electric Co. v. Bear Stearns & Co.* (1990) 50 Cal.3d 1118, 1126.)

“[A] cause of action for intentional interference with contract requires an underlying enforceable contract. Where there is no existing, enforceable contract, only a claim for interference with prospective advantage may be pleaded.” (*PMC, Inc. v. Saban Entertainment, Inc.* (1996) 45 Cal.App.4th 579, 601.)

Here, the FAC lists the following people/entities that Plaintiff alleges it had contracts with that were disrupted by Defendant’s defamatory remarks:

1. The Garden’s Crematory/manager Lauren Marquez
2. Loma Vista Memorial Park and Mortuary, owned by Kurt Adams
3. Immanuel Presbyterian Church/ Mr. Rafael Cardona
4. Bethel Korean Church/ Rev. Soongo Han and Rev. Bryan Kim

5. Melrose Abbey and Mortuary/ Ms. Khari Knight
6. Fullerton Presbyterian Church/ Rev. Young Roh
7. Joen Church/ Rev. Jung Kim
8. Il-Shim Funeral Final Expense Service Ms. Jean Shin.

(FAC, ¶15.)

Defendants have met their burden to show that while Plaintiff identifies multiple business associates, the record confirms the absence of any enforceable contract with several of them, or that the relationship was merely a referral source or per-service arrangement. (See SSUF 21-53).

Plaintiff also cannot show an actual breach or disruption proximately caused by Defendants' conduct. The Gardens Crematory continued to perform, and Sunnyside still does business with it, negating breach or disruption of any contractual relationship. (SSUF 21, 24). Hilgenfeld Mortuary terminated its relationship for independent reasons—pandemic capacity strain, Sunnyside's timeliness issues, storage constraints, and misrepresentations about COVID positive cases. (SSUF 38-46). As to Loma Vista, Sunnyside's own lack of documents supporting any alleged statements, coupled with vague accounts from an anonymous employee, precludes proof of breach or disruption tied to Defendants. (SSUF 25-27). The pre-2019 cessation with Melrose Abbey predates the alleged interference period and cannot be attributed to Defendants' later conduct. (SSUF 33-34). Goldie S. Kim had a direct employment relationship with Sunnyside from approximately 2017 to 2018. (SSUF 47.) Jung Kim also worked at Sunnyside during the same period. (SSUF 48.) Both left Sunnyside to run their own business. (SSUF 49.) Goldie did not utilize Sunnyside's services for personal purposes and never had a personal or contractual business relationship beyond employment with Sunnyside. (SSUF 50.)

In opposition, Plaintiff offers only the conclusory testimony of Charles An's assertions that "Immediately after Mr. Jung's defamatory remarks about Sunnyside, and for a period of several years thereafter, Sunnyside experienced pre-need contract cancellations it never experienced before, with several hundred customers cancelling those contracts." (An Decl., ¶2.) "Substantial" responsive evidence is required. Evidence that gives rise to no more than mere speculation is insufficient to establish a triable issue of material fact. (*Howard v. Accor Mgmt. US, Inc.* (2024) 101 CA5th 130—plaintiff's evidence that property owner had actual or constructive knowledge of unsafe condition was speculative and did not raise triable issue.)

		The Court also notes the Accusation by the Bureau was served on July 17, 2020 and it required Plaintiffs to each consumer identified in its pre-need portfolio with the account number for where the advanced funds have been deposited. (Moving Ex. R.) Looking at the evidence presented including Defendants' discovery responses, Plaintiff has not shown a triable issue of fact as to this cause of action. Thus, the motion is granted as to the second cause of action for intentional interference with contract. Defendants are ordered to serve notice of this ruling.
11	Taylor vs. First American Title Insurance Company 2024-01438157	Motion for Reconsideration / Motion for Sanctions The motion for reconsideration by Plaintiff Jacob Taylor ("Plaintiff") for an order revoking the Court's October 20, 2025 Order granting the Motion to Compel Arbitration pursuant to Code of Civil Procedure section 1008 is granted in part and denied in part. The motion by Defendants First American Title Insurance Company, Richa Krishnanand, and Jeff Watska (collectively, "Defendants") for an order requiring Plaintiff and his counsel to reimburse Defendants for their expenses, including attorney's fees, incurred in responding to Plaintiff's November 17, 2025 and December 11, 2025 <i>ex parte</i> applications and the filing of the motion for sanctions in the amount of \$15,140.96 is denied. MOTION FOR RECONSIDERATION <u>Applicable legal authority</u> A motion for reconsideration must be filed within 10 days of service on him of notice of entry of the order in question. (Code Civ. Proc., § 1008, subd. (a).) As provided in section 1013, the 5 day extension of time for mail service applies in the absence of a specific exception. (Code Civ. Proc., § 1013, subd. (a).) There is no exception stated for section 1008. (<i>See also</i>, Rutter, Civ. Proc. before Trial § 9:326.1 [stating the 10 day deadline is extended under CCP 1013 for service by mail in the absence of a specific exception].) A motion for reconsideration made by a party must be based on new or different facts, circumstances, or law than those before the court at the time of the original ruling. (Code Civ. Proc., § 1008, subd. (a).) The motion must also be accompanied by an affidavit from the

moving party that states: (1) what application was previously made; (2) when and to what judge; (3) what order was made; and (4) what new or different facts, circumstances or law are claimed to be shown. (Code Civ. Proc., § 1008, subd. (a).) A party seeking reconsideration also must provide a satisfactory explanation for the failure to produce the evidence at an earlier time. (*New York Times Co. v. Superior Court* (2005) 135 Cal.App.4th 206, 213.)

A motion for reconsideration is invalid when filed if it failed to comply with the statutory procedural requirement that the motion contain the requisite affidavit. (*Branner v. Regents of University of California* (2009) 175 Cal.App.4th 1043, 1048.)

The burden under section 1008 “is comparable to that of a party seeking a new trial on the ground of newly discovered evidence: the information must be such that the moving party could not, with reasonable diligence, have discovered or produced it at the trial.” (*New York Times Co. v. Superior Court*, 135 Cal.App.4th at 212-213.) The legislative intent was to restrict motions for reconsideration to circumstances where a party offers the court some fact or circumstance not previously considered, and some valid reason for not offering it earlier. (*Gilberd v. AC Transit* (1995) 32 Cal.App.4th 1494, 1500.) A party seeking reconsideration of a prior order based on “new or different facts, circumstances or law” must provide a satisfactory explanation for failing to present the information at the first hearing; i.e., a showing of reasonable diligence. (*Garcia v. Hejmadi* (1997) 58 Cal.App.4th 674, 690.) The court cannot consider matters presented at the earlier hearing. (Code Civ. Proc., § 1008, subd. (f).) Reconsideration cannot be granted based on claims the court misinterpreted the law in its initial ruling. (*Gilberd v. AC Transit*, 32 Cal.App.4th at 1500.)

Merits

Plaintiff substantially complied with section 1008, subdivision (a). However, Defendants did not oppose the motion on the ground that Plaintiff did not strictly comply with section 1008. The Court grants Plaintiff’s request to reconsider the Court’s October 20, 2025 Order.

In the Court’s October 20, 2025 ruling, the Court did not grant the motion on the sole ground that Plaintiff did not tender the consideration for the Separation Agreement. Even if Plaintiff properly and promptly returned the consideration for the Separation Agreement, Plaintiff still had not met his burden to show the Separation Agreement was obtained through fraud. (Bellah Decl., ¶ 2, Exhibit 5, Page 5.)

A party that believes it has been fraudulently induced to enter into a contract may rescind. (*Little v. Pullman* (2013) 219 Cal.App.4th 558, 566.) The elements of fraud in the inducement are (1) the defendant made a promise to the plaintiff, (2) at the time the promise was made, the defendant did not intend to perform the promise; (3) the defendant intended to cause the plaintiff to rely on the promise; (4) the plaintiff reasonably relied on the promise; and (5) the plaintiff was harmed as a result. (*Lazar v. Sup. Court* (1996) 12 Cal.4th 631, 638-639; *Muraoka v. Budget Rent-A-Car, Inc.* (1984) 160 Cal.App.3d 107, 119.) To establish a claim of fraudulent inducement, one must show that the defendant did not intend to honor its contractual promises when they were made.” (*Agosta v. Astor* (2004) 120 Cal.App.4th 596, 603.)

Plaintiff did not meet his burden to show the Separation Agreement was obtained through fraud. Accordingly, Plaintiff’s request to revoke the Court’s October 20, 2025 ruling is denied.

MOTION FOR SANCTIONS

Defendants seek CCP section 128.5 sanctions against Plaintiff for having to respond to Plaintiff’s November 11, 2025 and December 11, 2025 *ex parte* applications to advance the hearing on Plaintiff’s motion for reconsideration.

As an initial matter, the Court declines to consider Defendants’ reply evidence. (*Jay v. Mahaffey* (2013) 218 Cal.App.4th 1522, 1537-1538.)

Notice of a 128.5 motion shall be served as provided in Section 1010, but shall not be filed with or presented to the court, unless 21 days after service of the motion or any other period as the court may prescribe, the challenged action or tactic is not withdrawn or appropriately corrected. (Code Civ. Proc., § 128.5, subd. (f)(1)(B).) The safe harbor notice provisions must be strictly complied with. This serves the statute’s remedial purpose and underscores the seriousness of a motion for sanctions. (*Galleria Plus, Inc. v. Hanmi Bank* (2009) 179 Cal.App.4th 535, 538.) This applies to both the 21 day safe harbor period *and* the contents of the notice to be served. When a moving party does not strictly comply with the safe harbor provisions, the motion should be denied. (*Galleria Plus, Inc. v. Hanmi Bank, supra*, 179 Cal.App.4th at 538.)

“The purpose of the safe harbor provision is ‘to conserve judicial resources otherwise spent adjudicating a sanctions motion by affording a prescribed period of time during which a party may correct or withdraw a frivolous or improper pleading or motion without any penalty. [Citation.] If the merits of the objectionable document are

resolved by the court prior to the expiration of the safe harbor period, there is nothing left to correct or withdraw, thereby undermining the remedial purpose of the safe harbor provision.” (*Changsha Metro Group Co., Ltd. v. Xufeng* (2020) 57 Cal.App.5th 1, 8-9, citing *Li v. Majestic Industry Hills LLC* (2009) 177 Cal.App.4th 585, 593-594.) Section 128.5 limits the safe harbor provisions to only those alleged actions and tactics that can be withdrawn or appropriately corrected and common sense. (*Id.*, at 16.) “[W]hen it is not practical to apply the safe harbor provision then it need not be used.” (*Id.*, at 18.) By way of example, “section 128.5, subdivision (f) does not work with the anti-SLAPP statute.” (*Id.*, at 21.) The “proper procedure for the trial court to follow in regard to a request for attorney’s fees related to an anti-SLAPP motion is the procedure set forth in subdivisions (a) and (c).” (*Id.*)

Although an *ex parte* application could be withdrawn, it would not be possible for Defendants to comply with the safe harbor requirement if seeking 128.5 sanctions for a purportedly frivolous *ex parte* application. Even if the safe harbor did not apply, Defendants still must meet their burden to show the applications were frivolous under section 128.5.

The term “frivolous” “means totally and completely without merit or for the sole purpose of harassing an opposing party.” (Code Civ. Proc., § 128.5, subd. (b)(2).)

“Whether an action is frivolous is governed by an objective standard: any reasonable attorney would agree it is totally and completely without merit. (*Finnie v. Town of Tiburon* (1988) 199 Cal.App.3d 1, 12, 244 Cal.Rptr. 581; *In re Marriage of Reese & Guy* (1999) 73 Cal.App.4th 1214, 1220–1221, 87 Cal.Rptr.2d 339.) There must also be a showing of an improper purpose, i.e., subjective bad faith on the part of the attorney or party to be sanctioned. (*Campbell v. Cal–Gard Surety Services, Inc.* (1998) 62 Cal.App.4th 563, 574, 73 Cal.Rptr.2d 64; *In re Marriage of Reese & Guy*, *supra*, at p. 1221, 87 Cal.Rptr.2d 339.) Section 128.5 requires notice and an opportunity to be heard before the imposition of sanctions, and the court must issue a written order reciting in detail the conduct justifying sanctions. (*Trans–Action Commercial Investors, Ltd. v. Firmaterr, Inc.* (1997) 60 Cal.App.4th 352, 367, 70 Cal.Rptr.2d 449.)” (*Levy v. Blum* (2001) 92 Cal.App.4th 625, 635.)

The intent of section 128.5 was to broaden the powers of trial courts to manage their calendars and provide for the expeditious processing of civil actions by authorizing monetary sanctions now not presently authorized. (*Levy v. Blum*, 92 Cal.App.4th at 635, citing *Trans–Action*

		<i>Commercial Investors, Ltd. v. Jelinek</i> (1998) 60 Cal.App.4th 352, 367.) “Section 128.5 authorizes the award of attorney fees as a sanction to control improper resort to the judicial process.” (<i>Id.</i>;) “The statute permits the award of attorney fees, not simply as appropriate compensation to the prevailing party, but as a means of controlling burdensome and unnecessary legal tactics.” (<i>Id.</i>) “Section 128.5 requires much more than a party acting with ‘no good reason’ to justify an award of sanctions. There must be a showing not only of a meritless or frivolous action or tactic, but also of bad faith.” (<i>Levy v. Blum</i>, 92 Cal.App.4th at 635-636.) In any event, whether to grant sanctions is subject to the court’s discretion. (<i>Wallis v. PHL Associates, Inc.</i> (2008) 168 Cal.App.4th 882, 893.) Defendants have not shown Plaintiff’s <i>ex parte</i> applications were frivolous or submitted with bad faith. In addition, even if the safe harbor provision doesn’t apply, Defendants waited over a month after Plaintiff’s <i>second ex parte</i> application to file this motion for sanctions. Accordingly, the motion for sanctions is denied. Plaintiff shall give notice.
12	Wilson vs. Dan 2025-01523063	1. Motion for Order Requiriang Plaintiffs to Furnish Security Bond 2. Case Management Conference CONTINUED TO 7/13/26